

CS4001- Professional Practices in IT

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Lecture # 2

- ▶ Legal/Illegal
- ▶ Moral/Immoral

Rights

- What are rights?

Examples:

“You have no right to tell me what to do”

“ I have the right to do that”

Categorizing Rights

Philosophers often make an important distinction in the nature and type of (how to consider) rights as:

- ▶ Negative Rights
- ▶ Positive Rights

Negative Rights

- ▶ Negative rights are those rights which require restraint by others.

Examples:

My right of not to be killed, robbed, poisoned, harmed and so on. It requires others refrain from killing, robbing, poisoning me.....

- ▶ However negative rights does not require that others take action to keep me alive, putting locks and guards to save me from being robbed

Positive Rights

- ▶ Positive rights are those which implies others have a duty towards the right holder.

Example:

If I have a right to live then not only others have to refrain from killing me but also they need to feed me, keep me safe etc.

Further classes of Rights

- ▶ Legal Rights
- ▶ Moral Rights

Legal Rights

- ▶ Legal rights are rights created and applied by the law. The law enforces a statement or code of conduct, a deed to be done or rule to follow and fixes a punishment against violating the law.

Moral Rights

- ▶ Moral , natural or human rights are independent from the law.
- ▶ A civilized society's first line of defense is not the law, police and courts but customs, traditions and moral values. Behavioral norms, mostly transmitted by example, word of mouth and religious teachings, represent a body of wisdom distilled over the ages through experience and trial and error.

Moral vs Legal

- ▶ **Moral status** leads to let you decide on the base of good or bad consciousness, religious training, manners etc. Although it does not involve penalty in violating such rights but a feeling of guilt is always there too follow.
- ▶ **Legal status** enforces your deeds on the grounds of defined law and has a penalty or punishment for those violating such rights or laws.

Case 1 (Polluting the environment)

- ▶ Moral status
 - ▶ Don't throw waste papers on the ground it will pollute the environment
- ▶ Legal status
 - ▶ Making the case legal how????

Case 2 (Oldies get a seat in a loaded bus)

- ▶ Moral Status

- ▶ Youngers should give the oldies a seat ; good manners

- ▶ Legal Status

- ▶ Label some seats for the oldies and fine those youngsters who don't give away the seats for the oldies

Case 3 (Password privacy in an organization)

- ▶ Moral status
 - ▶ No one is supposed to share their password else their data can be tampered, stolen etc..
- ▶ Legal status
 - ▶ If any one leaks his/her password he/she should pay a fine and suspended for a day.

Case 4 (An institute giving degrees to those who are not eligible vs giving degrees which are not recognized)

- ▶ Moral status

- ▶ No one is supposed to give degrees unless the requirements are fulfilled. Low standards of required skill are against moral values.

- ▶ Legal status

- ▶ If some one provides degrees which are not recognized by any higher commission or whose charter is not valid.